

information as to composition, or other relevant data. If doubt still exists after receipt of results, the matter should be referred, if necessary, to the Classification Unit, Customs Division (email - tarclass@revenue.ie). Samples or specimens taken for submission to the above Unit, for decision as to liability to duty or for any other purpose, must be labelled and contain details of the export particulars. The fact that samples or specimens have been taken is to be noted on the declaration.

10.3.10 Disposal of remnants

The exporter or agent is to be asked if the return of the unused portion of the sample is required. If return is required the State Chemist will, when reporting the result of the test, either return the unused portion or state that there is no available remnant. If the State Chemist returns the samples or specimens, they are to be replaced in the packages from which they were taken, and the declaration noted to that effect. When this is not practicable, they are to be handed to the exporter or their agent and a receipt obtained. The officer is to arrange for the samples receipted return or is to inform the exporter or agent that there is no available remnant. Any costs arising from the return of the unused portion are to be borne by the declarant. However, where the declarant disputes the result of analysis, the unused sample portions are not to be returned until all appeals against the decision taken by Revenue have been exhausted.

(Article 244 of the UCC IA refers)

10.3.11 Disposal of unclaimed samples

Where the declarant does not request the return of the samples, Revenue may ask the declarant to remove any remaining samples or dispose of them by sending them to the State Warehouse for disposal if of commercial value or, by destruction if of no commercial value.

(Article 242(2) of the UCC IA and Article 198(1)(c) of the UCC refer)

To observe health and safety requirements, before hazardous or dangerous samples are disposed of, directions and advice should be sought from the State Chemist. Staff should be alert to the possibility that improper disposal could lead to damage to the environment.

The Sample Register and the declaration are to be noted with the method of disposal and any receipt annexed to the declaration.

10.4 Release of goods

Goods are to be cleared without waiting for the results of analysis unless there are grounds for not doing so.